

STATE OF NEW YORK

10569--A

IN ASSEMBLY

March 13, 2026

Introduced by M. of A. PAULIN, SCHIAVONI, SIMON, KASSAY, JENSEN, DE LOS SANTOS, McDONALD, GIGLIO, FITZPATRICK, GANDOLFO, STERN, GRIF-FIN, REYES, DURSO -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to establishing a demonstration program for pediatric palliative care centers; authorizing a rate methodology for pediatric palliative care centers; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known as the "pediatric
2 palliative care center act".

3 § 2. The public health law is amended by adding new section 2801-i to
4 read as follows:

5 § 2801-i. Pediatric palliative care center demonstration program. 1.
6 For the purposes of this section (a) "Pediatric palliative care patient"
7 means an individual who:

8 (i) is under twenty-one years of age;

9 (ii) has been diagnosed with a chronic, complex, life-threatening
10 illness that is expected to shorten the individual's life expectancy;
11 and

12 (iii) is not expected to survive past twenty-one years of age.

13 (b) "Pediatric palliative care" means patient and family centered
14 interdisciplinary care provided to those under twenty-one years of age
15 with serious, complex, chronic, life-limiting, or life-threatening
16 medical conditions for the purpose of preventing and relieving suffering
17 and improving quality of life. Care may be provided concurrently with
18 curative, restorative, disease directed, or life prolonging treatment
19 and if appropriate regardless of prognosis or life expectancy.

20 2. (a) Notwithstanding any other provision of law, the department
21 shall establish a pediatric palliative care center demonstration
22 program, of up to five not-for-profit entities, to evaluate the delivery
23 of pediatric palliative care centers services and their efficacy.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) Such demonstration centers shall be limited in size by the depart-
2 ment after considering the need of the demonstration catchment area. The
3 department shall also consider the placement of the centers based on an
4 estimated number of pediatric palliative care patients in the particular
5 area and the availability of other services in the area.

6 (c) Before approving a not-for-profit entity for the demonstration
7 program under this section, the commissioner shall be satisfied with the
8 character and competence of such entity. The commissioner shall take
9 into consideration any experience with the department and other state
10 agencies.

11 3. (a) A pediatric palliative care center approved to operate under
12 this section shall be eligible for federal funding to the extent possi-
13 ble.

14 (b) Hospice services provided within a pediatric palliative care
15 center shall be delivered by, or by contract with, a hospice program
16 licensed pursuant to article forty of this chapter.

17 4. The department shall adopt rules and regulations which shall
18 include, but not be limited to, minimum operating standards applicable
19 to the services and need of pediatric palliative care patients;

20 5. Eligibility criteria for pediatric palliative care center services
21 shall be based upon medical necessity, functional impairment, caregiver
22 need and other criteria established by the commissioner.

23 § 3. Section 2807 of the public health law is amended by adding a new
24 subdivision 22 to read as follows:

25 22. Notwithstanding any provision of law, rule or regulation to the
26 contrary, the commissioner shall establish or approve a rate methodology
27 for pediatric palliative care centers established pursuant to section
28 two thousand eight hundred one-i of this article, for the purposes of
29 providing palliative care to children. Such rate methodology shall be
30 based on the reasonable costs of operating a demonstration center in an
31 efficient manner. The commissioner may also apply for federal financial
32 participation if appropriate.

33 § 4. This act shall take effect on the one hundredth day after it
34 shall have become a law and shall expire and be deemed repealed 8 years
35 after such date. Effective immediately, the addition, amendment and/or
36 repeal of any rule or regulation necessary for the implementation of
37 this act on its effective date are authorized to be made and completed
38 on or before such effective date.